

IN THE CHANCERY COURT OF LAFAYETTE COUNTY, MISSISSIPPI

MATTHEW OLIVER REARDON

PETITIONER

CAUSE NUMBER: CV-2016-422W

PHYLLIS MARIE CROWDER-KESTER

DEFENDANT

**AMENDED PETITION FOR CITATION OF CONTEMPT AND MODIFICATION OF CHILD
SUPPORT AGREEMENT**

COMES NOW the Plaintiff Matthew Oliver Reardon, and files his Petition for citation of civil and criminal Contempt and Petition for Modification of Child Support Obligations against the Defendant, Phyllis Crowder-Kester.

In support thereof your petitioner would respectfully show unto the Court the following:

1.

This Court has personal and subject matter jurisdiction in this matter.

2.

That the Defendant, Phyllis Crowder-Kester, is an adult resident citizen of Lafayette County, Mississippi, and may be served with process at her residence in Lafayette County, Mississippi, or wherever she may be found.

3.

That on March 23rd, 2021 This Court entered a Temporary order regarding child visitation, a true and correct copy of which is attached hereto as Exhibit "A".

4.

That Defendant abruptly ceased communication between the plaintiff and his minor child on or around 6/5/2021.

5.

Plaintiff states conduct of the Defendant have now far surpassed self-assuming the role of Judge, Jury, and Executioner, and that by now the Defendant should certainly have the forefront knowledge to not override a signed order of this court or any court for that matter.

6.

That Defendant's legal counsel most certainly had an ethical obligation to advise defendant against withholding all visitation, contact, and communication between the plaintiff and his minor child, yet

for the majority of her life she has experienced forced separation by way of manipulation, false, and frivolous legal claims that lack all substantive evidence, adding extra burden to the court docket, and expending county tax dollars through one way or another.

7.

and false claims that have been asserted by the defendant and her attorney have met and exceeded the threshold required for Slander, Defamation of Character, Abuse of Process, and Malicious Prosecution.

8.

The plaintiff would demonstrate to this court that by admission on a recorded phone call on a recorded phone call plaintiff holds in his possession, defendant admitted to conspiring with her present husband in an obnoxious attempt to falsely accuse Plaintiff of raping her on November 28, 2018. As a result of her criminal actions, Olive Branch Police Department filed a misdemeanor charge against defendant and sought a warrant for her arrest in or around January of 2019 for making a false police report of rape.

9.

That as a result of defendant's contumacious actions, plaintiff has in turn suffered extreme mental anguish and emotional distress and states that the forced separation to include refusing communication and even eye contact with the minor child again has likely taken it's toll on the minor child and her mental health.

10.

That after so many documented instances of defendant refusing to comply on signed order, and after so many documented instances of false affidavits given along with the latest stunt pulled by the Defendant on 6/19/2021 which not only resulted in Defendant NOT dropping the Justice Court Complaint from February 2020, but Defendant actually adding an additional "harassing phone calls" complaint despite not one call being made between plaintiff and defendant, and both her cell phone provider as well as the provider of the plaintiff know the truth is such.

11.

That plaintiff is and has stayed current on his child support agreement with the child support automatically withheld and paid directly to defendant each month

12.

That Plaintiff wishes to quash the withholding order and immediately halt all child support money to be paid out to Defendant. Plaintiff understands his financial obligation to his child, however, the dangers of an individual continuing to go in contempt of a visitation order set forth by this court has

progressed considerably past any type of warning from this court the defendants counsel will likely argue for. Plaintiff would show that in order for a contract to be fully binding and enforceable, such as a contract for visitation rights and a contract for child support, there must be mutual consideration. Plaintiff lost the entire year of 2020 (12+ months) of not seeing his minor child due to the defendant's lies and that is time no matter what he can't get back. To date he has lost the majority of agreed upon time with his minor child in 2021 to include ALL summer vacation and Fathers Day. As such, mutual consideration was catastrophically severed years ago and only compounded since. It's these reasons that Plaintiff feels as an abrupt temporary end to child support paid out to defendant is warranted as this destructive behavior must be curbed and it shouldn't be at the further victimization of the plaintiff by the defendant in this cause

WHEREFORE ALL PREMISES CONSIDERED

This honorable court should have an OBLIGATION to send a deterring, punishing message to the Defendant along with Defendant's legal counsel whom have either assisted the defendant in the execution of her manipulation stunts continuously waging an undeserved legal war on plaintiff to stack overburden and stresses with the end goal of permanently ridding a caring father from his daughter's life. If Defendant's legal counsel did not assist in the execution of these stunts, at the bare minimum Defendant's legal counsel neglected their own ethical obligations all attorneys must maintain. To help curb future instances such as this or much worse as plaintiff has suffered from for 4-years at the hands of the Defendant plaintiff moves for this court to issue sanctions as allowable under MRCP 11. Plaintiff moves that the Defendant be required to pay an extremely discounted sum of \$40,000 accounting for the costs and time lost, injuries inflicted on Plaintiff's marriage and family life and mental anguish both present and future bestowed upon plaintiff at the malice hands of the Defendant.

Plaintiff respectfully moves that all costs of this court be taxed to Phyllis Crowder-Kester and prays for any other relief in which he may be entitled to receive, both special or general

Respectfully Submitted this 4th day of August, 2021

Matthew Reardon

Matthew Reardon

Plaintiff (pro-se)

117 CR 401 Water Valley MS 38965

662-812-1613

matt@mattreardon.com